Appendix – II B

DEED OF AGREEMENT

THIS DEED OF AGREEMENT Is made on this_____day of _____ 20____ at _____ , Assam

BETWEEN

The State of Assam, Health and Family Welfare Department, represented by **Prof. Sanjeeb Kakati** aged about **65** years, S/O, D/O, W/O **Late Bhairab Ch. Kakati** presently holding the post of **Principal, Assam Medical College, Dibrugarh** under Government of Assam, Health and Family Welfare Department, (which expression shall, unless repugnant to the context hereto, shall mean and include his/her successors, administrators, attorneys, assigns and any person claiming under him/her), hereinafter referred to as **FIRST PARTY** of the First Part;

-AND-

Dr._____ aged about _____ years, S/O, D/O, W/O _____, resident of _____P.O.-_____ P.S._____, District _____ PIN _____, State _____ (which expression shall, unless repugnant to the context hereto, shall mean and include his/her legal heirs, successors, administrators, attorneys, assigns and any person claiming under him/her), hereinafter referred to as **SECOND PARTY** of the Second Part;

WHEREAS, the Second Party has obtained MBBS Degree from _____ Medical College & Hospital situated at _____, and after completion of the said course, the Second Party, is now intending to take admission in Post Graduate Course/Post Graduate Diploma course in the Medical College & Hospital of Assam namely _____ at **Assam Medical College, Dibrugarh;**

AND WHEREAS, the Second Party shall bear only the admission fees, hostel fees and other charges for the aforesaid Post Graduate course/Post Graduate Diploma Course, and the First Party shall give the monthly stipend to the Second Party during the period of the said Post Graduate course/Post Graduate Diploma Course;

AND WHEREAS, the First Party, i.e., the State of Assam shall incur huge expenditure from the State Exchequer for the purpose of Imparting education to the Second Party in pursuing the Post Graduate Course in the above noted State Medical College & Hospital of Assam, namely **Assam Medical College** at **Dibrugarh.**

AND WHEREAS, in the Interest of public service, the First Party has decided to give admission to the Second Party in the Post Graduate course/Post Graduate Diploma Course in the above noted State Medical College Hospital of Assam, namely **Assam Medical College** at **Dibrugarh** in the State of Assam, and the First Party shall bear the expenses of his/her education, other than the admission fees, hostel fees and other charges, in pursuing said Post Graduate course/Post Graduate Diploma Course;

NOW THEREFORE, THIS AGREEMENT WITNESSETH THE FOLLOWIWG TERMS AND CONDITIONS:

1. That after completion of his/her Post Graduate Degree Course / Post Graduate Diploma Course, the Second Party shall have to compulsorily serve the Government of Assam for a mandatory period of 2 (two) years, following the successful completion of his/her degree/diploma course.
2. That the First Party shall have the authority to utilize, the service of the student i.e. the Second Party in any Hospital/Medical institution within the State of Assam where there is necessity of a Specialist Doctor in the interest of public service, including any eligible agency notified by the Health and Family Welfare Department, and/or any other State/Central Government sponsored scheme/s, or, in any part of the State of Assam, if the Government desires his/her service.
3. That Second Party shall be governed by the Medical Colleges of Assam (Regulation of Admission into Post Graduate Degree and Diploma Courses) Rules, 2021, as amended up to date.
4. That in case of any breach of the terms and conditions as stated hereinabove, the Second Party shall be bound to pay an amount of Rs. 20,00,000/- (Rupees Twenty Lakhs) only, in respect of Post Graduate Degree Candidate, or, Rs. 15,00,000/- (Rupees Fifteen Lakhs) only in respect of Post Graduate Diploma Candidate as per **Rule 9(i) of Medical Colleges of Assam (Regulation of Admission into Post Graduate Degree and Diploma Courses) Rules, 2021**, to the First Party, i.e., the Government of Assam, Health and Family Welfare Department, as compensate on account of expenses borne for the Second Party in pursuing the aforesaid Post Graduate Course.
5. That in case of failure to pay the compensation by the Second Party as mentioned above, the First Party shall be at liberty to file Money Suit and/or to take any other appropriate legal action against the Second Party in the competent court at Guwahati, Assam, for recovering the same at the risk and cost of the Second Party.

IN WITNESSES WHEREOF, the parties hereto, having fully understood the terms and conditions of this Agreement and with full knowledge and sound mind have signed, sealed and delivered these presents on the day, month and year as mentioned above.

WITNESSES

(Signature of the First Party)

1.

(Signature of the Second Party)

2.